



# KNOW YOUR RIGHTS (KYR): A GUIDE FOR IMMIGRANTS

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Everyone in the United States, regardless of immigration status, is entitled to certain protections under the U.S. Constitution. This guide is designed to inform you of your rights and how to exercise them legally, respectfully, and responsibly during interactions with law enforcement or Immigration and Customs Enforcement (ICE).

## YOU HAVE FUNDAMENTAL RIGHTS

- **You have the Right to Remain Silent**
  - If questioned, you have the right to remain silent. Respectfully state:
    - "I am exercising my right to remain silent."
- **You have the Right to Privacy**
  - Officers cannot enter your home without a valid warrant signed by a judge. If they have a warrant, you must comply, but you can ask to see the warrant before allowing entry.
- **You have the Right to Legal Representation**
  - If detained or questioned, you can ask for a lawyer before answering any questions. Always carry the contact information of a qualified immigration attorney or legal aid organization.

**Important Disclaimer:** This guide is for **educational purposes only** and does not constitute legal advice. For personalized assistance, consult a licensed immigration attorney. It is your responsibility to follow the law while protecting your rights.

## **WHAT IS IMMIGRATION AND CUSTOMS ENFORCEMENT (ICE)?**

- ICE is an immigration agency under the Department of Homeland Security that enforces immigration laws. It is responsible for making arrests for violations of immigration laws and conducts deportations.
- ICE agents typically wear navy blue uniforms and drive a white vehicle with a blue stripe. Their uniforms might say police, ICE, HSI, or Federal Agent. (They also sometimes wear common clothes.)
- ICE is not the same as local law enforcement or police. ICE agents are Federal agents, which means they work for the Federal Government. Their job is to enforce civil immigration law, not criminal law. (ICE does often work together with local law enforcement.)



### **DURING ANY INTERACTIONS WITH ICE:**

**You will likely feel nervous, but remain calm, be polite, and follow these steps:**

- Do not resist or run. This can be seen as noncompliance.
- Ask if you are free to leave.
  - If yes, walk away calmly.
  - If no, politely state: "I am exercising my right to remain silent."
- Do not answer any questions about your status or where you were born. It can be used against you.
- Do not provide false information or documents. This is against the law and may harm your case.
- What to say:
  - "I am exercising my right to remain silent."
  - "I would like to speak with an attorney."
  - "I will not sign anything without understanding it."



A close-up photograph of a hand turning a silver door handle. The hand is wearing a grey sweater. The background is a dark wooden door. The image is overlaid with a semi-transparent white box containing text.

## ***IF ICE VISITS YOUR HOME***

- Your home is considered a private space and ICE is not allowed to enter without consent or a judicial warrant. Therefore,
- DO NOT OPEN THE DOOR.
- Ask to see a warrant (slide under the door or through a peephole).
- What is a warrant? How will you know you're looking at a warrant?
- Only a judicial warrant gives ICE or law enforcement access to your home. A valid judicial warrant will be signed by someone with the title "judge."
- Any other document is not the type of warrant that allows them access to your home.
- ICE almost never has a judicial warrant. But they may try to deceive you with other documents. Be cautious and look very carefully.
- If the warrant is valid:
- Allow entry without resistance.
- You can remain silent and ask to speak to your lawyer.
- If you opened your door and ICE is in your home:
- Do not physically resist, but remain silent and ask to speak to a lawyer. You can say:
- "I am exercising my right to remain silent."
- "I would like to speak with an attorney."
- "I will not sign anything without understanding it."
- Videos: [When ICE Is Outside Our Doors](#) (English), [Inside Our Homes](#) (English)



## ***IF ICE VISITS YOUR WORKPLACE***

Many workplaces will have public areas (areas that are open to the public) and private areas (areas that are not open to the public). ICE is allowed to be in public areas, but may not go into private areas without consent or a warrant.

1. Remain calm. Do not try to run or hide.
2. Do not provide false information.
3. Follow instructions and ask if you are free to leave.

Additional information: [Immigration Enforcement at the Workplace](#) (English)



## ***IF POLICE CONDUCTS A TRAFFIC STOP***

1. Present Required Documents Only.
  - Show your driver's license, registration, and proof of insurance.
2. Do not consent to a search of your car. Respectfully say: "I do not consent to a search."
3. Do not answer any questions about your immigration status.



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## **IF YOU ENCOUNTER ICE IN PUBLIC SPACE, INCLUDING SENSITIVE LOCATIONS**

You may encounter ICE in public places such as sidewalks, parks, parking lots, etc. You may now also encounter ICE in places that were once considered “sensitive locations” such as churches, hospitals, courts, shelters, and schools. Your rights remain the same in all of these locations. Remember to remain calm, be polite, and follow these steps:

1. **Do not resist or run.** This can be seen as noncompliance.
2. **Ask if you are free to leave.**
  - If yes, walk away calmly.
  - If no, politely state: *“I am exercising my right to remain silent.”*
3. **Do not answer any questions about your status or where you were born.** It can be used against you.
4. **Do not provide false information or documents.** This is against the law and may harm your case.

What to say:

*“I am exercising my right to remain silent.”*

*“I would like to speak with an attorney.”*

*“I will not sign anything without understanding it.”*

Video: [In Our Communities, In Our Streets](#) (English)





## ***IF ICE DETAINS YOU***

1. Request legal representation. You have the right to an attorney.
2. Do not sign documents without legal counsel. Signing could waive your rights.
3. Contact family or legal help. Use your phone call to inform them of your situation. You can be located at <https://locator.ice.gov/>.
4. Comply with legal processes. If transferred to a detention center, provide your attorney's contact information to authorities and follow lawful procedures.

Video: [If ICE Arrests Us](#) (English)



# **HOW TO PREPARE FOR POSSIBLE ENCOUNTER WITH ICE**

## *How to Prepare for Possible Encounter with ICE*

### **1. Organize important documents.**

- a. Keep copies of your ID, birth certificates, and immigration paperwork in a secure place.
- b. Keep application receipts.

### **2. Always carry with you any valid immigration document you have.**

- a. If you have a valid work permit or green card, for example, be sure to have it with you in case you need to show it for identification purposes.
- b. If you have a pending immigration case, including an asylum claim, an immigration court case, or a pending appeal, carry proof of that pending case with you.
- c. Do not carry papers from another country with you, such as a foreign passport. Such papers could be used against you in the deportation process.

### **3. If you have lived in the U.S. for longer than two years, carry proof with you and show it to an immigration officer if you are arrested.**

- a. Evidence can include a signed lease, church or school records with your address, or postmark mail that you have received at your home address. You may want to carry copies of these documents instead of the originals, so you do not risk losing them.

### **4. Create an Emergency Plan. You can use this [Preparedness Toolkit](#) (English).**

- a. Share your plan with family and trusted friends, including memorized emergency contact numbers. Give a copy of your documents to someone that you trust.
- b. Parents who may be at risk should create a plan, including identifying caregivers. See this [checklist](#) (English).

### **5. If you are required to check-in with ICE, never show up for your check-in alone;** always bring someone (example: someone with US citizenship status) who is not at risk of being arrested by ICE. Find more information [here](#).

### **6. Locate free or low-cost legal services by visiting:**

<https://www.immigrationadvocates.org/nonprofit/legaldirectory/>

### **7. Role play & practice** with your family so that you will know what to say if you encounter ICE.